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#MeToo, gas tax roil California primary legislative battles

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SACRAMENTO, Calif. (AP) — This is not your normal legislative primary election.

It features one state senator who is running for the seat he resigned over sexual harassment allegations and another fighting a recall over one of his votes. Also up for grabs in the June 5 primary are two Assembly seats vacated by members felled by sexual misconduct complaints as the #MeToo movement roiled the Legislature, and two incumbents are battling misconduct allegations against them.

Moreover, opposition to President Donald Trump seems to have brought out an unusual number of candidates with half the 40-seat Senate and all 80 Assembly seats in play, said Darry Sragow, publisher of the California Target Book that tracks legislative races.

"It's not business as usual," he said.

Democratic Sen. Josh Newman of Fullerton is the target of a Republican-led recall effort over his vote to increase the gasoline tax last year. Lawmakers raised gas taxes by 12 cents a gallon and diesel taxes from 16 cents per gallon while adding a new yearly fee on vehicles to generate about $5 billion a year for road repairs.

Republicans think fighting the gas tax could be an energizing issue for voters in 2018, and the recall is the effort's first test. The seat Newman won two years ago is in traditionally Republican Orange County. Three Republicans, including Newman's 2016 opponent, former Assemblywoman Ling Ling Chang, and three Democrats are in the recall election. Voters will choose whether to recall Newman and pick from his possible successors on the same ballot.

Democrats who control the legislative process went to extraordinary lengths to protect Newman, passing a law that pushed the recall vote to same day as the June primary, when he is more likely to survive because of an expected higher turnout by Democratic voters.

Unseating Newman would have stripped Senate Democrats of their two-thirds supermajority — had not Sen. Tony Mendoza resigned in February rather than face an extremely rare expulsion vote. He's one of three lawmakers who resigned this session over sexual misconduct.

"The important work of folks bringing alleged sexual harassers to light has created a number of vacancies as well as a number of complications that have made things interesting," said Democratic political consultant Maclen Zilber, who is not involved in either contest.

Now Mendoza, of Artesia, wants the seat back. He's running again for his Los Angeles-area seat despite a finding by outside investigators that he likely engaged in unwanted "flirtatious or sexually suggestive" behavior with six women. Mendoza, who identifies himself on the ballot as a public school teacher, has denied engaging in inappropriate behavior and said he retains widespread support.

The June 5 ballot for the seat will be complicated; voters will choose from one field of candidates to compete in an Aug. 7 special election to fill the vacancy this year and another set for the traditional November general election. The candidate fields are slightly different, but Mendoza is running in both.

Mendoza's opponents include former Democratic Assemblyman Rudy Bermudez, setting up a potential battle over which candidate has the best positive name-recognition. Republican leaders are backing former Senate aide and

two-time Assembly candidate Rita Topalian.

The top two vote-getters advance, no matter their political party affiliation.

Meanwhile, two Democratic front-runners face runoff elections against Republican opponents for Los Angeles County seats vacated when Assemblymen Matt Dababneh and Raul Bocanegra resigned after being hit with sexual misconduct allegations.

Special primary elections in April set up a race between Democrat Luz Rivas and Republican Ricardo Benitez to replace Bocanegra, and between Democrat Jesse Gabriel and Republican Justin Clark to replace Dababneh. With each of the vacant seats, voters will pick legislators both to complete the departed lawmakers' current terms and to fill the seats after the fall election.

Also suffering #MeToo fallout are two sitting lawmakers including Assemblywoman Cristina Garcia, a Los Angeles Democrat who once was a prominent leader of the movement. She took a voluntary unpaid leave from the Assembly this year after she was accused of groping a former legislative staff member in 2014, a charge she denies. An investigation into the claims against her hasn't concluded.

She's being challenged by six fellow Democrats and one Republican, though so many Democrats may split the opposition vote. Complicating things for Garcia, the powerful State Building and Construction Trades Council recently created a committee to spend money opposing her.

Republican Assemblyman Devon Mathis of Visalia faces two intraparty challengers in the Central Valley district after the Tulare County Republican Central Committee sought his resignation over alleged inappropriate behavior including sexual misconduct. Sacramento police found no evidence to support a criminal charge and Mathis denies the accusation. His former chief of staff filed a lawsuit against Mathis and the Assembly repeating the claim in April.

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